

TRANSCRIPT — MANCHESTER ZONING BOARD OF ADJUSTMENT

Public Hearing of September 10, 2026 — Cases ZBA2026-055 (218 South Lincoln Street) and ZBA2026-063 (26 Titus Avenue)

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Case ZBA2026-055, 218 South Lincoln Street (0:22:30 – 1:05:15)

0:22:30.32 >> Thank you.

0:22:31.32 >> Mr. Chairman, our next case this evening is ZBA 2026-55.

0:22:38.64 This is property located 218 South Lincoln Street.

0:22:42.40 This is the R2 zoning district.

0:22:44.92 Attorney Andrew Sullivan and his agent proposed to convert a two-family dwelling to a three-family dwelling and seeks a variance from section 4.3A1C for the multifamily dwelling.

0:22:50.32 dwelling and seeks a variance from section 4.3A1C for the multifamily dwelling.

0:22:57.92 And this is as per document submitted through June 11, 2026.

0:23:05.84 >> Before I begin my presentation, a couple handouts.

0:23:28.92 >> I sure do have one for Mike.

0:23:57.92 >> Okay.

0:23:58.92 >> Okay.

0:23:59.92 >> Okay.

0:24:27.92 >> Good evening.

0:24:45.08 My name is Andy Sullivan, attorney for Mr. Assey sitting next to me.

0:24:50.32 He owns the property through his trust.

0:24:52.32 Just to give a little background, that's why I handed out these.

0:24:56.84 He and his father and his three brothers built the property in 1958.

0:25:01.56 It's been me and/or around his family since then.

0:25:05.40 It was originally used for the whole family, but it was designed so it could seamlessly

0:25:11.60 convert into a three-family back then.

0:25:14.16 The section in the front that you see that faces Beauvoir was originally a big kitchen

0:25:19.40 and four boys, but that hasn't been used since the 1960s, and that's the area that will become

0:25:28.84 the proposed third unit.

0:25:30.08 The objective here is to convert a use that is two-family into a three-family.

0:25:36.72 The lot, as you can see from the plan, the tax map and the chart of lot sizes in the

0:25:42.92 area, it's the largest lot in the area.

0:25:46.64 The house, however, is configured such that it can't be subdivided.

0:25:50.56 Whatever happens, happens with this big lot.

0:25:53.24 It's a corner lot.

0:25:54.76 It has like 258 feet of frontage.

0:25:58.36 It just means minor dimensional deficiencies, but it meets setbacks for the most part.

0:26:05.20 The lot area, again, meets all this, but it is asking for a three-family in the zone.

0:26:12.80 Right now, there are six bedrooms, two units.

0:26:17.44 There will be only five bedrooms when it becomes a three-family.

0:26:22.36 I mentioned that because one of the objecting letters said, "Well, it's going to be six

0:26:25.60 bedrooms."

0:26:26.60 It's not.

0:26:27.60 It's actually going to be one less.

0:26:28.88 He designed the lot, you can see on the plan, which is at Appendix H, with six parking spots

0:26:36.52 under the new statutory.

0:26:38.52 You only need one per unit, he could have one per unit, but he designed it with six,

0:26:46.12 so it would ameliorate any need for offsite parking, and it fits nicely in the lot.

0:26:54.32 So if we look at the age of the building, the building exterior, it's size, its footprint

0:27:03.92 will not change.

0:27:04.92 So for the last almost 68 years, it's been a major component of the neighborhood.

0:27:10.88 It's not going to change the look of the neighborhood.

0:27:14.56 Six parking spots are provided, double the amount required.

0:27:18.60 Because it's on the corner of South Lincoln, the traffic flow to the back neighborhood,

0:27:23.20 Beauvoir, and Vinton Street, it's not going to happen.

0:27:26.36 It's all going on South Lincoln Street.

0:27:30.00 And third unit will obviously add much needed parking.

0:27:35.60 Not much needed housing stock.

0:27:37.60 Now I know Alderman Berkes wrote a letter to the board saying it's had a lot of adverse

0:27:46.04 activity there, which is absolutely true.

0:27:48.56 But one of the handouts I gave you is a vacate letter.

0:27:52.20 The place is empty.

0:27:53.56 I started an eviction proceeding.

0:27:56.00 He defaulted, but he left on the 8th, so it is completely empty.

0:28:01.88 The objective here, Mr. Assey is 95 years old, he'll probably outlive everybody in this

0:28:06.92 room.

0:28:07.92 He's in great shape.

0:28:08.92 But nonetheless, he's trying to plan ahead.

0:28:11.40 His nephew, who he's taken care of as his son probably for the last 50 years, he plans

0:28:17.24 to have him ultimately get the property, live there as soon as it's renovated.

0:28:22.72 And with the two units, that would be enough income to provide taxes maintenance and keep

0:28:26.88 it up with an owner occupied.

0:28:28.88 We all don't own occupied.

0:28:30.48 They're not going to let scumbags, dirt bags, and whatever else baggage there.

0:28:33.88 It's going to be a nice, cleanly run property.

0:28:38.32 About nine neighbors submitted positive letters that supported the two letters that were objected.

0:28:44.96 One was not in the butter, but was diagonally across the street in South Lincoln.

0:28:48.28 The other one is across the street as in the butter.

0:28:50.58 But they both talk about the use, which I'm going to call the former use of the property,

0:28:55.60 meaning it was not a great spot.

0:28:59.88 People were in there that shouldn't have been there.

0:29:01.60 They were doing things, probably they shouldn't have done.

0:29:03.48 That has all stopped.

0:29:05.52 Whatever happened in the future, I doubt it would have been owner occupied right there

0:29:09.96 keeping track of it.

0:29:10.96 That's why insurance companies, banks, laws, owner, and occupiers, they take better care

0:29:14.84 of the property.

0:29:16.16 But in terms of the variance, how it was used in the history is really not relevant, even

0:29:23.20 though, of course, subjectively we all look at it and think about it, but it's just not

0:29:26.92 going to happen again.

0:29:28.36 What is happening is we have a building that was originally designed for a three family

0:29:32.88 70 years ago, but they had a big family, didn't need it, and now they want to put it back

0:29:39.88 in there.

0:29:40.88 The largest lot in the area.

0:29:43.68 The exterior won't change except for one door being added, and it'll be the six parking

0:29:48.04 spots rather than the dirt parking lot of indeterminate number of spaces they have now.

0:29:52.36 It'll be a cleaner looking building, it'll be a cleaner looking lot.

0:29:56.08 It'll be owner occupied, and the variance relief request is very minimal.

0:30:04.08 It's a reasonable use.

0:30:05.60 In fact, the kitchen layout is still there.

0:30:07.48 It would cost more money to renovate that and make it larger, two units, two family,
0:30:14.24 than it going into a three family.
0:30:15.64 It's 90% there.
0:30:16.64 It's been 90% there for probably 70 years.
0:30:19.24 As a matter of fact, the other picture I showed you in color, it shows you there are already
0:30:24.80 three electric service panels there.
0:30:26.52 They've been there for 70 years.
0:30:28.36 There are already three, were there water pumps?
0:30:30.36 What are the three water pumps?
0:30:32.84 The other pictures?
0:30:34.24 The water pumps?
0:30:35.24 Al's gone to the death here.
0:30:37.12 What were the, what are these right here?
0:30:40.12 Oh, yeah.
0:30:41.12 They were circulated from the heating system.
0:30:44.72 So there's already three zone heating systems in place.
0:30:49.04 It's been there for 70 years.
0:30:51.28 It was designed as a three family back in '58.
0:30:55.56 So again, it's a reasonable use.
0:30:58.64 It would be a hardship to do nothing.
0:31:01.44 I mean, it's a waste of the property, and the building is designed really for a three
0:31:06.00 family.
0:31:07.00 It's a little finishing touches, and that's what he plans to do.
0:31:10.08 I have a floor plan I submitted to and how he plans to put it together.
0:31:14.52 Al's been a builder in the city for what, 80 years?
0:31:19.92 At least something like that.
0:31:22.76 He's very good at what he does, and he just needs some tender loving care and an occupied
0:31:29.16 family member to make it work.
0:31:32.20 I'm open for questions.
0:31:33.20 Thank you.
0:31:38.20 Members of the board, anyone have any questions of the applicant?
0:31:45.04 Are there any other three family units in the neighborhood?
0:31:49.92 On that side, I have a chart.
0:31:52.20 They're across the street, meaning between South Lincoln and South Will, but not on his
0:31:57.84 side.
0:31:58.84 No, they're not.
0:31:59.84 He's not in the immediate area that I scoped out.
0:32:03.44 There are two families, but it's predominantly single family.
0:32:09.80 I have a chart, an annotated chart.
0:32:13.36 I think it's A. It's exhibit C. I labeled what I found from the city records.
0:32:29.44 His is a two family.
0:32:31.72 Down the block on that street, excuse me, on Vinton Street, there are one, two, three,
0:32:39.72 two families.
0:32:44.36 Across on Lincoln, there's another three families somewhere.
0:32:48.36 Office, now you're getting more towards South Will Street, so there's retail, et cetera.
0:32:55.36 Do all the board members see that on its exhibit C of Andy's packet?
0:33:06.60 All right.
0:33:09.60 Catherine?
0:33:11.60 Can you tell me, please, about you mentioned that in the past it had a variance for three

0:33:19.04 apartments.

0:33:20.16 What year?

0:33:21.16 When was this?

0:33:23.12 We don't know.

0:33:24.12 We looked and the city said they didn't keep records that far back.

0:33:27.48 I couldn't find it either.

0:33:29.08 He thinks it was before 1965 or whatever.

0:33:33.12 Whenever the city started keeping hard records.

0:33:35.72 When were the three panels installed?

0:33:38.08 They were installed when the building was built.

0:33:40.84 It was always designed to meld into a three family when it was built.

0:33:45.28 As far as it was a builder, too.

0:33:48.04 All right.

0:33:49.04 Thank you.

0:33:50.04 Craig?

0:33:51.04 The three panels, though, it's house unit one and unit two, correct?

0:33:54.40 So you need four at a third unit?

0:33:56.00 No, there's only going to be three units.

0:33:57.92 There's three panels for that.

0:33:59.28 So each spot which will be the three family has its own separate unit.

0:34:05.56 Again, the section that will be the new third unit, that was part of the original house.

0:34:10.68 There's a kitchen in there and the kitchen layout is still there to still counter.

0:34:13.72 The one that is still plumb for that.

0:34:16.88 But you'll still need a house meter or one of the tenants or the owner occupant would

0:34:21.44 be paying the electric.

0:34:23.44 Yes, it's designed so that the media will serve the particular three units, even though

0:34:28.88 the units are going to be reconfigured.

0:34:30.88 Mr. Chairman, I just want to follow up.

0:34:34.04 Craig makes a good point.

0:34:36.32 Most multifamily buildings have a -- you know, the landlord has a house panel and that powers

0:34:42.76 all the common areas of stairwells.

0:34:44.72 And that's kind of what this seems like right now in this current instance.

0:34:49.20 Al, quick, but there's not going to be any common area.

0:34:53.00 Is there -- each unit will be self-sustained?

0:34:55.56 Common area?

0:34:56.56 No.

0:34:57.56 Each unit will be self-sustained?

0:34:58.56 Each unit will be separate.

0:34:59.56 So the service panel for each unit will serve only?

0:35:01.56 Yeah, each one has its own service and nothing changes on the outside of the building.

0:35:07.64 There's no lighting outside of the units like the hallways are pitch black all the time?

0:35:12.92 The hallways are contained within the unit.

0:35:15.48 Each unit -- so is that -- you're saying each unit is -- has its own entrance?

0:35:22.68 Yes.

0:35:23.68 Two.

0:35:24.68 Because no outside changes to the footprint except one door.

0:35:31.72 That's it.

0:35:32.72 But each unit has two accesses to the outside.

0:35:37.88 And those are contained within the unit.

0:35:40.44 So there's no common area.

0:35:41.76 There may be outside lights, but it goes with a particular unit.

0:35:46.16 And as a follow-up to that, I think -- I won't dig into that too much.

0:35:49.80 You could add a panel if you chose, of course.

0:35:51.68 But even a networked fire system should be on its own separate piece for any space where

0:35:55.96 there's common systems.

0:35:58.60 The tenants need to have access to their system.

0:36:00.84 So --

0:36:01.84 Whatever the building department wants will be done.

0:36:03.80 Sure.

0:36:04.80 I think the other question that's important when I look at this, the ownership staying

0:36:09.24 the same with ongoing, is that correct?

0:36:12.40 So I know you said that there'll be an owner-occupant.

0:36:15.16 But is the applicant moving in or is it the family member?

0:36:18.32 No, no, no.

0:36:19.32 Just his nephew.

0:36:20.32 The applicant lives elsewhere.

0:36:22.32 Okay.

0:36:23.32 So that's not owner-occupied as you're presenting?

0:36:24.92 At this point in time, no, but it will be because it will be --

0:36:27.16 Anything can or will be, but that's not what it is.

0:36:29.76 I never said it was.

0:36:31.72 That's the objective.

0:36:32.72 The objective is it's going to be conveyed to the nephew.

0:36:35.80 Okay.

0:36:36.80 So a concern I have on this is that --

0:36:38.60 If you want to make that a condition, not a problem.

0:36:42.32 The property's been allowed to get into a condition that's concerning.

0:36:47.90 So I want to understand if the same applicant's going to continue owning it as they make these

0:36:54.12 -- what was the reason that it was allowed to degrade to its current state?

0:37:01.88 The aerial photos have tarps on the roof.

0:37:04.28 As a rental property, it was allowed to get pretty blighted.

0:37:07.48 He's asking basically -- He's asking why did the property become kind of like a scum --

0:37:13.88 Why did the property get allowed to be kind of a scummer property in labor terms?

0:37:19.08 If I can hear words.

0:37:21.08 I think I carried away and I couldn't -- I always -- I kept saying they were going to

0:37:27.16 change.

0:37:28.16 I'm going to stop and I went along with them helping out their change when I happened to

0:37:33.16 throw them out.

0:37:34.16 Can you have him speaking in the microphone?

0:37:36.16 Sure.

0:37:37.16 What he's saying is he kept hearing the promises that they cleaned their act up and get better

0:37:43.00 and they kept giving away when they didn't.

0:37:45.80 But materially, so in the photos that are the aerials, there's a hole in the roof and

0:37:49.36 it's covered by a blue tarp.

0:37:50.36 That's not the tenant responsibility.

0:37:51.96 That would be an owner responsibility, correct?

0:37:54.04 Is there a hole in the roof covered with a tarp?

0:37:57.60 The tarp?

0:37:58.60 No.

0:37:59.60 And one of the older aerial photos.

0:38:01.60 There's a section we put a piece of -- That's a whole picture.

0:38:20.56 That roof was replaced last August, a year ago.

0:38:26.20 Okay.

0:38:27.20 Thank you.

0:38:28.40 You mentioned --

0:38:29.40 Yeah, that was replaced a year ago.

0:38:32.28 The nephew that's been taking care of the property as of late?

0:38:36.36 No, he's not been taking care of the property.

0:38:39.00 Al has been responsible for it but it's getting too much.

0:38:41.72 But he's going to convey the property to the nephew.

0:38:45.92 Anyone else?

0:38:46.92 We'll go to public.

0:38:47.92 Anyone here speaking in favor of this application?

0:38:49.88 Anyone to speak in opposition to the application?

0:38:52.88 Any general comments?

0:38:55.40 Any correspondences, Mike?

0:38:57.28 Yes, Mr. Chairman.

0:39:01.80 We have a letter from Alderman Jim Burkish.

0:39:07.84 He writes, I am writing today regarding proposed variance to convert the property to a three-family dwelling.

0:39:14.28 dwelling.

0:39:15.28 As a result of the award, I have received numerous complaints about the condition of the property

0:39:19.16 and the activity of the tenants and visitors.

0:39:21.76 I have contacted Manchester police and city code enforcement on numerous occasions.

0:39:26.32 MPV has responded to the location 89 times in the past three-plus years for drug activity,

0:39:32.84 scrapping, noise complaints, parking issues and other homeless problems.

0:39:38.12 Code enforcement has also responded 10 times in the past year for housing code violations,

0:39:43.44 trash accumulation and people living in the shed.

0:39:46.88 Neighbors have asked me to forward their concerns as they fear retribution.

0:39:51.12 This property is negatively affecting the property values and quality of life for the

0:39:54.72 neighborhood and speaking with the owner and Alex Azy, I have advised them to rectify

0:40:01.20 the current problems and bring the property into compliance prior to seeking a variance

0:40:06.56 until these problems are rectified.

0:40:08.48 I cannot support the variance and ask the ZBA to deny Alderman James Burkish.

0:40:16.40 We have a second email here.

0:40:20.92 They write, my name is Braden McLaughlin, owner of 13 Bow

0:40:26.84 Vare Street, the single family home directly across from 218 South Lincoln Street, where

0:40:31.84 my family and I have lived since January of 2021.

0:40:35.60 I am messaging to cosign on all points the opposition letter sent by Kate Carrum, previous

0:40:43.72 to this email on 7/8/26 titled, "Objection to the proposed application of variance for

0:40:49.20 218 South Lincoln Street."

0:40:51.48 I strongly support the upholding of the denial of the appeal of forbearance in this matter,

0:40:57.00 and I will add my perspective here.

0:40:58.88 I want to first emphasize that I do not hold any ill will towards the Azy family, especially

0:41:04.44 since Alex at least has been communicative and pleasant when addressing the ongoing and

0:41:09.36 deeply problematic issues present at the property in question.

0:41:13.76 However, I must be blunt and honest throughout.

0:41:16.80 It continues to baffle me when nothing has been done about this problematic property

0:41:20.88 for years now with two separate swat raids happening over the course of my time here
0:41:25.88 and uncountable medical, fire, and police visits most recently involving a tragic overdose
0:41:32.04 death on the property.
0:41:33.96 I understand that Alex's inability to enact any lasting change regarding the illicit behavior
0:41:39.40 is in part because he was not the owner, his uncle was, and that may be changing soon and
0:41:44.84 hopefully so shall the rate of such activity may be reduced.
0:41:49.88 However, as Kate mentioned, this proposal was mentioned to me as a zero-sum game by
0:41:54.80 Alex.
0:41:56.80 There is context not noted in the application which I want to supply my subjective take
0:42:02.28 here as best I can remember with my conversation with Alex.
0:42:07.72 The ultimatum, as I understood it, was as it follows, A, either the appeal for variances
0:42:14.08 is denied and subsequently the Azzy family will freely decide to take essentially no
0:42:18.76 action at all to improve the property or situation with the current tenants or B, it is approved
0:42:25.60 and Alex's income is allegedly supported enough by additional tenants in the other two units
0:42:31.76 after evictions and repairs to live comfortably on the property.
0:42:35.56 Something he claimed to me, it would not be practical otherwise.
0:42:39.12 It is my opinion that if a person comes into possession or decision-making powers of a
0:42:44.64 property and they do not already have the financial means to live on said property without
0:42:49.28 a variance from the city, it is not the responsibility to taxpayers around them to permit a variance
0:42:55.24 so they can acquire enough passive income via landlording to support their desired lifestyle.
0:43:01.60 I am sympathetic to their desire to repair the building, rent out to law-abiding people
0:43:06.96 and restore history/sentimental altality existing here for the Azzy family, but I have doubts
0:43:14.80 as to the true level of dedication they have in helping the neighbourhood as a primary
0:43:19.08 motivator.
0:43:20.76 This is because it was implied to me that the mere possibility of a denied appeal will
0:43:25.36 threaten to stop improvements on 218 South Lincoln Street altogether and leave it as
0:43:30.80 is which leaves the surrounding neighbourhood to suffer the long-standing behaviour that
0:43:35.80 brings such tribulations such as overdoses, swat raids, drive-by dealings, manic screaming
0:43:42.76 matches resulting in police visits, roaming dilapidated RVs obstructing driveways, toxic
0:43:49.56 fumes from burning piles of unknown provenance, overflowing garbage blowing into neighbouring
0:43:55.08 yards and horrendously loud scrapyards enterprises happening on the property into the small hours.
0:44:03.48 That says to me that their interest is not focused first on improving the neighbourhood
0:44:07.52 but primarily their desire for a live-in rental property enabled by increased income by abusing
0:44:14.24 an exception to the zoning rule.
0:44:16.56 The fixing of the nuisance that is at present 218 South Lincoln Street is therefore incidental
0:44:22.36 and secondary as was implied to me to the desire to live in a restored area of the neighbourhood
0:44:33.36 with property and living off the increased landlord revenue.
0:44:37.04 They have the capability to help the neighbourhood but only on their terms.
0:44:40.96 That is their right as it is my right to voice my opposition to this unnecessary zoning exception
0:44:47.52 request.
0:44:49.96 There is no unnecessary hardship at present and it can only be reasonably used as a two-family
0:44:55.76 property as it's now zoned.
0:44:57.76 There is no reason to add a three-family building to an otherwise primarily single-family neighbourhood
0:45:03.32 beyond sheer financial gain regardless if it is for profit or for living expenses.
0:45:09.00 There is substantial research into the subject property value effects that differ from what
0:45:13.72 was stated in the application which was very little.
0:45:16.68 So I find little to trust there.
0:45:18.48 The primary ingress egress route for the cars already causes headaches for me backing out
0:45:23.88 and maneuvering around as non-residential guests frequently line Baubert Street, a short

0:45:29.52 low traffic narrow road to visit 218 South Lincoln Street.

0:45:35.12 I cannot imagine adding more residents there that would improve the situation, good intentions

0:45:40.60 or not.

0:45:41.60 Please, I will not be denied this application.

0:45:44.88 Thank you for your consideration Brady McLaughlin.

0:45:47.80 And here is the e-mail he referred to from Kate Carrum.

0:45:54.88 My name is Kate Carrum.

0:45:55.88 I'm the owner of a single-family property located at 237 South Lincoln Street.

0:46:00.80 An application has been filed by the owners of 218 South Lincoln Street for a variance.

0:46:06.48 My property is across the street from this property.

0:46:08.60 It is unclear from published records if the request has been denied but the applicant

0:46:13.08 has filed an appeal for hearings scheduled in July.

0:46:18.54 So I am going to assume that this is an ongoing request and express my strong opposition to

0:46:23.20 the applicant to request for a variance.

0:46:26.20 Under New Hampshire law and Manchester's land use code, the applicant bears the burden

0:46:30.40 of approving all five criteria for a variance.

0:46:33.76 This application feels to me four of those strict legal thresholds.

0:46:38.16 One unnecessary hardship.

0:46:40.56 The applicant has no unique hardship inherent to the land or structure itself that prevents

0:46:45.48 it from being reasonably used as a two-family home.

0:46:48.80 The property is already a functioning viable multi-family residence.

0:46:53.28 Personal financial gain or desire to maximize rental income does not legally constitute unnecessary

0:46:58.52 hardship under New Hampshire's zoning law.

0:47:02.28 Two spirit of the ordinance in public interest.

0:47:04.92 The surrounding neighborhood is characterized primarily by single-family and traditional

0:47:08.96 two-family homes.

0:47:10.80 Branding this variance would alter the essential residential character of our neighborhood,

0:47:15.40 increase density beyond what the zone intends and run contrary to the public interest.

0:47:20.56 Three, diminution of property values.

0:47:23.60 Increasing the density of this specific law will lead to a higher concentration of occupants,

0:47:28.56 increased trash management issues and heightened visual clutter.

0:47:34.04 These factors will negatively impact the aesthetics, desirability and overall market values of surrounding

0:47:39.72 properties including my own.

0:47:42.28 Four, traffic and parking congestion.

0:47:45.60 The property lacks adequate off-street parking to absorb a third residential unit.

0:47:50.96 Forcing additional vehicles onto the street creates a direct safety hazard for emergency

0:47:56.48 vehicle access, sight lines and winter snow removal.

0:48:01.20 The addition of parking spaces on the lot to accommodate a third unit will fail to provide

0:48:05.60 the required landscape buffers required for expanded parking.

0:48:11.16 All of these are disqualifying pursuant to the land use code.

0:48:15.32 In addition to failing to meet the criteria of the land use code, there were other red

0:48:18.84 flags that were causing concerns for the neighborhood.

0:48:21.48 A big part of the owner's representative pitch to the neighbors is always that there will

0:48:26.04 be a resident as well as an owner.

0:48:28.32 There is no way to guarantee that there will always be a permanent on-site resident of the

0:48:32.44 property as verbally promised.

0:48:35.60 It is not hard to envision a time when the owner moves and just rents to a third family

0:48:40.40 who sells the property outright.

0:48:43.60 There is no way to guarantee the number of tenants in a unit which he says will be two

0:48:49.12 with one child and perhaps a cat will always be enforced.

0:48:52.72 If the building would be sold with three apartments, there is no telling what the total number

0:48:57.04 of occupants could be.

0:48:58.96 All persons in three units would not be out of the question.

0:49:02.24 While we do not see how the current property can accommodate the cars for these apartments,

0:49:06.40 the owners promise that they will strictly enforce the number of cars that each of their

0:49:11.28 tenants can park on site with assigned parking.

0:49:14.28 What is the stop-off from simply parking additional cars and other vehicles on nearby public streets?

0:49:20.36 The owner's representative, Alexander Azzie, basically presented me with two options.

0:49:25.52 Either they leave the situation as it is with the building decaying and the current tenants

0:49:30.00 in place or we allow them to convert the three units which we assume is so they can maximize

0:49:36.24 revenue.

0:49:37.24 Neither of these options are acceptable.

0:49:40.60 Our property values have been negatively impact for years due to the gradual physical decay

0:49:45.08 of the residents, the increase in foot traffic, going to and from the house for the purpose

0:49:52.12 of buying and selling illegal narcotics and the all too regular police and FBI drug raids.

0:49:57.92 It is difficult to see how adding more people, more congestion, more traffic, more noise

0:50:03.56 and more transit is the solution.

0:50:07.24 I have nothing against the owners who at this time are our actual neighbors.

0:50:10.80 I appreciate that the grandson who visited me seemed sincere.

0:50:15.00 The owners could just be as sincere and simply fix the existing problems without making this

0:50:22.68 a three apartment unit building.

0:50:25.00 There is nothing stopping them from making necessary repairs and upgrades, just living

0:50:29.84 in one of the two existing apartments or selling the property.

0:50:34.08 Instead there appears to be a play to generate more rental income from the property at the

0:50:38.24 expense of the neighbors.

0:50:39.64 I strongly support the city's denial of this matter and encourage the zoning board who

0:50:44.16 once again deny this appeal, Kate Karam of 237 Lincoln Street.

0:50:53.32 That is all I have, Mr. Chairman.

0:50:55.32 >> Comment on this?

0:50:57.28 >> I will but don't you have some positive letters that I submitted?

0:51:02.08 >> With the application?

0:51:03.08 >> Yeah.

0:51:04.08 >> They are part of the record and the board has had them since you submitted this in June.

0:51:09.16 >> Okay, that's fine.

0:51:11.20 >> For the record, I mean where are they?

0:51:13.64 Attorney Sullivan.

0:51:14.64 Do you know what attachments they are?

0:51:17.92 >> I put them post application but you don't have to, you know, I just want to make sure

0:51:21.52 they are in the record.

0:51:22.88 >> We have the letter of.

0:51:24.32 >> They are all said the same thing, there are like six or seven people.

0:51:40.12 >> We see the, I think the broker opinion, I'm not.

0:51:45.84 >> I know he submitted them but that's okay.

0:51:55.36 Let me just respond.

0:51:59.56 Number one, again, it's not a metaphysical distinction but we are talking about the use

0:52:07.84 of the property, they are talking about the use of the property, so am I, versus the actual

0:52:14.08 situation at the property in terms of physical dimensions, et cetera.

0:52:21.00 Right now, it's a clean property.

0:52:24.88 No one is other than there, the outside is cleaned up, there is no hole in the roof,
0:52:30.56 so it's been cleaned up.
0:52:34.08 The question becomes will it stay that way?
0:52:36.64 Okay, will it stay that way?
0:52:40.32 The draconian alternatives that were presented by Alexander, that's the first I've heard
0:52:46.32 about it, I don't know if it's true, I don't know if it's not true, so I'm not saying first
0:52:50.04 I've heard about it.
0:52:51.04 But nonetheless, the property has been cleaned up, there is no variance yet.
0:52:57.28 So he cleaned up ahead of time, yeah, it will look good, but at the same time he made the
0:53:03.32 effort, he spent the money to get it cleaned up and get those people out of there and that's
0:53:07.80 the way they want it to stay.
0:53:11.64 Alexander is a younger guy, no offense to Mr. Asi here, but he's not.
0:53:17.52 As we all know, elderly people sometimes have difficulty exerting their will, if you will,
0:53:23.96 on other people.
0:53:25.96 It's just the nature of age.
0:53:29.56 That's not going to happen now because we have a younger guy that's going to be in charge.
0:53:33.44 He wants it cleaned, he doesn't want to live in an area like that.
0:53:36.60 So in terms of all the stuff that happened in the neighborhood because of that house,
0:53:41.68 no disagreement.
0:53:42.68 It's all a matter of fact, it's all a matter of police of record.
0:53:45.60 But it's been cleaned up, it's no different than any number of my clients who buy, beat
0:53:51.96 or apartment bills, they clean them up.
0:53:55.88 That's how they make their upside.
0:53:57.56 This upside is they want to live there, or at least Alexander wants to live there.
0:54:01.88 In terms of the character of the neighborhood, character of the neighborhood is partly how
0:54:08.60 the property is used.
0:54:09.60 It's going to be a better use of it.
0:54:12.04 But it's also what the property is going to look like.
0:54:14.08 It's going to look like it's always looked like for the last 70 years.
0:54:17.22 In terms of the parking, there's more parking than required.
0:54:21.04 We could go in and ask for just three spaces.
0:54:25.24 He purposely put six in because he realizes, as I know the plan of what it tends to do
0:54:29.88 quickly is we're not going to make you put more spaces on the lot, but you've got to
0:54:33.24 find more spaces for people to park because they're all going to have at least two cars.
0:54:36.64 I don't know if that's the case here, but there's plenty of parking.
0:54:39.80 And again, it's all going to flow into South Lincoln.
0:54:42.80 It's not going back in the neighborhood.
0:54:45.16 In terms of the property value, I have a broker's opinion of a well-known broker in the area.
0:54:50.32 Jerome Duvel says it's not going to diminish the value of the property.
0:54:54.92 I am not a broker.
0:54:56.96 But I rely on somebody else's opinion who is a broker of knowledge and skill and experience
0:55:02.64 and repute.
0:55:04.64 In terms of the hardship, it's two alternatives.
0:55:09.76 The first one is, is it a reasonable use?
0:55:14.16 It is a reasonable use.
0:55:15.88 It's a large house that was built originally to become a three-freely.
0:55:21.24 Never did over 70 years, but it's ready for it now.
0:55:24.08 It's 90 percent there.
0:55:25.36 It would be more expensive to rip that out and make two gigantic units, which would probably

0:55:32.12 not fit the neighborhood.

0:55:33.12 It would be just too big.

0:55:35.12 Sometimes a house or an apartment is too big for the character of the neighborhood.

0:55:39.68 In this case, to have two almost 2,000 square foot -- 1,500, 1,600 square foot units in that

0:55:46.68 neighborhood probably would be too big.

0:55:48.80 That would be conducive to a larger number of people there, other than smaller three

0:55:54.00 units.

0:55:55.08 So in terms of the criteria, in the hardship, again, the lot can't be subdivided because

0:56:04.04 of the location of the house.

0:56:05.84 In a way the house is configured, it would be just an absolute waste to try to reconfigure

0:56:11.00 it than what it was originally designed for.

0:56:14.16 You don't do that.

0:56:16.12 You modify it maybe, but you don't make something bigger than it already is designed to be without

0:56:23.12 expanding the exterior.

0:56:26.04 So I think we do deference to Ms. Karamer, her name is the man across the street.

0:56:34.08 The hassle of the neighborhood, if you will, has already gone away.

0:56:38.44 It's an empty building.

0:56:39.80 It's a cleaned up lot.

0:56:42.40 What will happen tomorrow?

0:56:43.40 It will stay empty and cleaned up until it's fixed up.

0:56:47.20 He plans to fix it up.

0:56:49.52 That's what he's there for.

0:56:50.76 It's like any other guy that buys an old building, they plan to fix it up.

0:56:55.76 He plans to fix it up so a family member can live there.

0:56:58.52 He doesn't plan to live there, but a family member plans to live there and ultimately

0:57:02.44 own it.

0:57:04.48 So all that, yes, it happened, but it's not happening now.

0:57:09.56 We met all of the men's criteria.

0:57:11.64 It's cleaned up.

0:57:14.12 In terms of the other aspects, I believe we've met all the four criteria of the hardship,

0:57:18.28 and especially since the relief requested is relatively minor.

0:57:22.60 Yes, we're asking for a three family, but it's a big building.

0:57:27.04 It's a big building.

0:57:28.04 It's tailor made for a three family.

0:57:30.20 It was made for a three family.

0:57:32.52 All we're asking is to become a three family.

0:57:36.20 >> So we'll close the public.

0:57:40.80 Go ahead, Matt.

0:57:42.40 >> Could you give me a little more guidance on the hardship issue?

0:57:47.12 It seems that the zoning doesn't contemplate three units.

0:57:54.64 >> The zone is not contemplate three units.

0:57:58.88 >> The hardship, you said it's a reasonable use, but let me just ask and then give me

0:58:06.00 guidance.

0:58:07.64 But in terms of the contemplation of the zoning for that area, it isn't that they be three

0:58:15.88 family units.

0:58:16.88 >> I'm just saying it's big.

0:58:18.80 It could accommodate three units.

0:58:22.68 In ancient days, it was designed for three units.

0:58:28.76 I'm not saying it can't be shown, but I'm having a hard time seeing how either of the

0:58:34.40 two alternatives that exist for showing hardship exist.

0:58:39.08 Could you give me a little guidance on that?

0:58:41.52 >> Yes, I'm saying one of the alternatives to the hardship criteria is if it's a reasonable

0:58:48.36 use, okay, and that use can't be done without relief, that's a hardship.

0:58:54.68 It's a reasonable use to make that building into a three family, okay?

0:58:59.48 Because of its size, because it was configured that way, it's a corner lot, it's the biggest

0:59:03.60 lot in the area, that's a reasonable use.

0:59:05.60 You may disagree with that, but that is my -- I'm pausing, it's a reasonable use.

0:59:09.32 It's such a big building and a big lot.

0:59:12.32 The hardship is I can't break up the lot, so if I'm going to create that reasonable

0:59:18.52 use, I need relief.

0:59:20.48 I need relief for two reasons.

0:59:22.48 One, I can't break up the lot, can't subdivide.

0:59:24.76 Two, the build's already configured.

0:59:26.76 It's 90% there as a three family.

0:59:29.24 It's minor changes inside to make it.

0:59:32.08 Just as a question of a waste in the classical sense, it would be a hardship to waste the

0:59:38.64 value of that building.

0:59:39.64 I'm not talking about making more money, but to waste the value of the build is already

0:59:43.64 90% configured as a three family.

0:59:46.56 That's the physical hardship in conjunction with I can't subdivide a lot to create another

0:59:51.40 small 50 by 100 lot there.

0:59:54.08 So I have that physical hardship in conjunction with the reasonable use, and that meets that

0:59:59.08 criteria.

1:00:00.08 >> Great, quick.

1:00:01.08 >> So mine's not a question, more of a deliberation.

1:00:04.84 The inability to subdivide is not a hardship.

1:00:07.68 When we start looking at the pieces that I think are the most relevant here, we have

1:00:12.56 to remember that this was submitted under the old zoning.

1:00:15.08 So this is when this neighborhood was R2.

1:00:18.48 And the specific spirit of that ordinance is a mix of single and duplexes.

1:00:24.76 So when we look at the applicant's own exhibit, they've submitted that there's 41 singles,

1:00:29.12 five, two families, and one, three on their own exhibit.

1:00:32.98 So this is clearly out of the spirit of the ordinance by definition, but it's also not

1:00:38.28 in keeping with the character of this neighborhood.

1:00:41.76 And I just don't see how creating the extra unit here is meeting the spirit of that or

1:00:47.64 creating substantial justice to the neighbors that are benefiting primarily from their single

1:00:52.76 family homes.

1:00:53.76 And it's not something I'm looking for the applicant to respond to.

1:00:56.32 It's again just deliberation.

1:00:59.44 And also there's no evidence that this was ever intended to be a third.

1:01:02.16 I recognize that the applicant's stating that, but a house panel is going to be needed to

1:01:05.92 operate the one boiler system with the multi-zone.

1:01:08.96 So that's not going to fly with me either.

1:01:11.74 If their intention was a three, just the fact that they overbuilt this house, which has

1:01:16.44 been stated that the applicant had their own hand in, that's not a hardship.

1:01:20.08 And if it is to be considered, it's self-adhered.

1:01:23.00 So there's no evidence here in my mind that the spirits observed or any substantial justice

1:01:26.68 is done, let alone a hardship.

1:01:28.60 So I would like to add, you know, you keep saying, I'll reiterate the three family point
1:01:36.48 that you say that it was constructed as a three family and never really used as a three
1:01:40.36 family, but it's existed as a two family for well over 50 years.
1:01:44.48 So yeah, so that kind of mused that point in my book and my book.
1:01:51.08 And then you say you've vacated apartment number two.
1:01:56.20 What's going on in apartment number one?
1:01:58.88 Who lives in apartment number one?
1:02:01.16 Is it Mr. Aziz that lives there?
1:02:03.16 No, it's empty.
1:02:05.16 A whole house is empty.
1:02:08.72 Okay.
1:02:09.72 So go ahead, Matt.
1:02:11.88 Now I'd just like to tie into what Craig said.
1:02:15.60 It's my understanding that when we have that fifth prong of hardship, it can't override
1:02:22.20 the fundamental purpose of what something's zoned for.
1:02:27.68 And it seems here that that's being attempted to use to override the fact that three families
1:02:35.60 aren't allowed by then claiming a hardship on a somewhat inventive approach to characterize
1:02:45.28 in it as a three family.
1:02:47.44 I think you already started.
1:02:52.72 So you start.
1:02:54.72 I'll reiterate and continue.
1:02:57.64 So I, I recognize that there are some points that the applicant has made that are, that
1:03:03.04 are factual.
1:03:04.04 This property is one of the largest lots in this neighborhood and these are large units.
1:03:10.72 We have a unit that's 1800 square feet, but as additional findings of facts, the applicant
1:03:16.04 had a hand in building this and chose to create these large units.
1:03:20.60 The neighborhood is as presented at this application is an R2 zone and the spirit of that is a
1:03:27.08 mix of single families and duplexes.
1:03:31.24 By the counts of the applicant's own submission, there are 41 single families, five, two families
1:03:37.56 and one, three family on the exhibit they presented omitting the subject property.
1:03:44.48 So based on that, this is not in the spirit of the ordinance and sub just their substantial
1:03:49.72 justice is not done by creating the density of a three family in this district.
1:03:56.52 So relative to ZBA 2026 dash 055, I motion that we deny for 4.3 a one C.
1:04:04.20 I will address a four and five for the record.
1:04:18.92 Though in itself, it's not, I tend to agree that a three family may not diminish the values
1:04:23.94 of the property around it.
1:04:26.04 So for that I take, I don't believe that the property values will be diminished, but in
1:04:35.36 this case as well, literal enforcement of the provisions, the ordinance do not create
1:04:38.88 an unnecessary hardship.
1:04:40.24 Thank you for clarifying.
1:04:41.24 We'd like to continue with stating your motion for we're only having on, do we have additional
1:04:50.96 ones on it?
1:04:51.96 Because on this one, it only says four, three, a one C multi-family dwelling.
1:04:54.40 Yeah, that's right.
1:04:56.40 We did talk about that.
1:04:59.40 That's right.
1:05:00.40 I got a second.
1:05:01.40 Second by Catherine.
1:05:02.40 All those in favor of denial.

1:05:05.32 Motion passes unanimously.
1:05:07.84 Okay.
1:05:08.84 Thank you.
1:05:09.84 Mr. Chairman, our next case this evening is ZBA 2026 dash 63.

Case ZBA2026-063, 26 Titus Avenue (1:05:15 – 2:00:30)

1:05:21.72 This is property located 26 Titus Avenue.
1:05:25.32 This is in the R1B zoning district.
1:05:28.44 Doug McGuire is agent proposed to construct a two townhouse, construct two townhouse dwellings,
1:05:34.88 one with eight units, the other with five units for a total of 13 multifamily dwelling
1:05:38.80 units on a lot of 49,484 square feet where 78,000 square feet is required.
1:05:46.20 We're both buildings are three stories in height or two and a half stories are allowed.
1:05:50.84 We're both buildings have a height of 38 feet where 35 feet is allowed.
1:05:54.84 And where the parking area for the eight unit building is within 20 feet of the building
1:06:00.12 itself and six of areas from sections four, three, a one C for the multifamily dwelling,
1:06:07.52 a one two for the plan development required lot area, five, three, one E for the townhouse
1:06:16.16 building types permitted in the district and then for maximum height and stories, maximum
1:06:22.92 height and fee and for the parking location for a plan development.
1:06:27.16 This is as per documents submitted through June 22nd, 2026.
1:06:30.96 Now, Mr. Chairman, they have asked that we set up the projector for them.
1:06:35.84 So just give me a quick moment.
1:06:42.00 Thank you, sir.
1:06:49.00 Thank you, sir.
1:07:17.00 Good evening.
1:07:30.76 For the record, my name is Doug McGuire.
1:07:32.12 I'm with the debate group and I am representing Todd Boyer of T&L 2018 LLC, the owner and
1:07:40.60 applicant of the property and Todd's here with me.
1:07:43.24 I am Todd Boyer.
1:07:45.84 So just a little background on this to get the board oriented.
1:07:50.16 This property, 26 Titus Avenue is located at the corner of Calith Road and Titus Ave.
1:08:00.12 It's a unique property, particularly for the area.
1:08:03.64 It is currently fully undeveloped.
1:08:05.44 It's a little bit of an odd shape, has the dual frontage, but more importantly, it also
1:08:10.28 has some topography challenges in this area.
1:08:13.64 If you're not familiar, the Titus Ave slopes up fairly steeply.
1:08:19.32 And so the front of the property fronting along Calith also has some fairly steep topography.
1:08:26.90 So when Todd came to me to evaluate this property and what to do with it, we looked at the by
1:08:33.56 right options, which would be being that this is in the R1B high density residential one
1:08:39.32 family zone.
1:08:40.32 This would be allowed to do single family residences as long as they have 6000 square
1:08:45.36 feet of buildable area and 60 feet of frontage.
1:08:48.36 So carving up the shape of this lot, you can see on this exhibit, we're looking at five
1:08:54.44 single family homes potentially.
1:08:56.68 The difficulty here is that four of the five homes would be fronting on Calith Road, individual
1:09:04.64 driveway curb cuts on Calith Road.
1:09:06.80 It is a heavily or traveled road and also the topography is a difficulty in this case
1:09:15.00 because essentially what you'd have to do is build the home directly into that slope,
1:09:22.20 minimizing potential for backyard.
1:09:25.60 And so it just didn't really seem to be a great viable option.
1:09:30.04 So we looked at other opportunities and we also looked at what else was going on in the

1:09:36.64 area and so this exhibit, we created this exhibit to kind of show the board about what's
1:09:51.40 going on out there in this area.

1:09:53.80 And so this entire view that you see is technically zoned, all R1B.

1:10:00.08 So there's no zone lines or anything within this area, but there are multiple different
1:10:07.00 existing nonconforming uses that exist in this vicinity.

1:10:11.16 And so to kind of walk you through the surroundings of our property, where the yellow property
1:10:16.72 here, we look at the area directly to the south.

1:10:20.92 We have this area right here directly across from our frontage is a existing 96 unit garden
1:10:31.68 style multifamily development.

1:10:34.04 So 96 condominiums, they are in four three story buildings and that lot is approximately
1:10:44.00 two acres.

1:10:45.48 So slightly larger than our lot, but obviously with a substantial amount of density on it.

1:10:51.92 To the west in the green that's partially covered that entire area is the Pine Grove
1:10:58.64 Cemetery.

1:11:00.04 So obviously no homes or anything will be built really in that area.

1:11:07.16 Then we have to the east directly abutting us the chunk that's kind of within the property
1:11:14.40 is an existing lot.

1:11:16.60 I haven't really quite seen this.

1:11:18.44 It's basically has, it has two full single family homes on it.

1:11:23.12 So there's an existing three bedroom home and an existing two bedroom home.

1:11:27.46 So I don't know exactly the particulars if that's being used as like an ADU type situation,
1:11:32.86 but that's what that and the zoning calls it multi house, whatever that falls under.

1:11:39.22 But it is fairly high density considering you have two single family homes on a quarter
1:11:43.64 acre property in that area.

1:11:47.60 Then we have the area to the north.

1:11:51.18 Those are all single family residences on mystic.

1:11:56.00 And so it is a bit unique though in how these areas are laid out.

1:12:01.40 So I just want to give a little background there on that.

1:12:04.08 When these were originally developed all these lots, you can see how like these are twice
1:12:09.82 as long as the other lots in the vicinity.

1:12:14.00 What happened here, which I'm sure you're familiar with is common throughout the city
1:12:17.24 is these were all originally developed as 50 by 110 grid lots.

1:12:22.76 And there was a paper street that went up in between our property in yellow and the
1:12:30.56 other properties.

1:12:31.56 And so each one of those fronting were potentially two house lots that were maybe going to be
1:12:37.76 developed at a future date.

1:12:39.84 So before coming to you here, we wanted to try to address that paper street issue.

1:12:47.40 And so we actually went through the, the owner here went through the process of extinguishing
1:12:54.02 that paper street and returning that land to not only his property half, but also the
1:13:03.04 other half to all the remaining properties on mystic.

1:13:07.62 And so all of those lots being the double lot, they're all 50 feet wide by 220 feet.

1:13:16.58 And then they now have another 25 feet going to, you know, taking up that paper street,
1:13:22.12 which has been added to their law and, and our exhibits reflect that, but that was not
1:13:27.36 the case, I guess, what, three, four months ago, correct.

1:13:31.04 You know, that, that was something that was taken care of by him and his attorneys and
1:13:34.86 with our office doing some boundary work and showing that information.

1:13:39.84 So the benefit though, I would say is that all of these lots, because they were at one
1:13:46.66 point double lots and they were all developed when they were double lots, their development
1:13:53.20 essentially fits within the 50 by 110 area and all the area beyond that is all existing

1:14:00.14 wooded area.

1:14:01.22 Now of course they have the right to develop that or expand that or cut that, but right

1:14:05.50 now there's a hundred and 10 feet plus the 25 we gave them.

1:14:10.70 So 135 feet of natural wooded buffer between this property and all of their existing residences.

1:14:17.88 So it's a unique feature that you don't see everywhere in the city that you have these

1:14:22.82 oversized lots that are all developed and have this large natural buffer, but it's beneficial

1:14:28.04 because it allows, I think in this case to be able to look reasonably at this property

1:14:36.14 in other ways other than strictly as single family because you do have a substantial buffer

1:14:41.94 to the single family residential.

1:14:44.08 You have multifamily residential directly across the street.

1:14:48.02 And lastly, the area to the East that's in yellow, that's an existing private school

1:14:54.46 that's been in operation for a number of years.

1:14:58.06 So we have essentially an institutional or commercial use right there on Titus as well.

1:15:05.78 So we really have a smattering of different uses throughout this immediate area.

1:15:12.50 And so for those reasons, we thought that it would be beneficial to look at developing

1:15:19.50 this property in a way that was more conducive to the natural topography and the layout of

1:15:25.38 the property.

1:15:26.54 And so we're proposing to do a townhouse development.

1:15:31.14 We're proposing 13 residential townhouses.

1:15:35.14 And so what we have here is you can see this graphic and I can go ahead and zoom in a little

1:15:41.94 bit on this graphic.

1:15:47.94 So this is what we're proposing here.

1:15:50.22 We aligned a driveway to be directly across the street of the existing multifamily that's

1:15:55.94 across the street on Titus.

1:15:58.10 You come in and these townhouses are proposed to be two-story townhouses without garages

1:16:06.34 with parking in front.

1:16:08.30 And the reason we're proposing that is because these units benefit from a walkout basement,

1:16:16.06 which works directly with the existing topography.

1:16:18.88 So you come in at a flat point, you have your parking, you have your front doors like a

1:16:24.86 typical townhouse and I have visuals of those as well to show you.

1:16:28.72 But the backyards walk out to take advantage of the grade.

1:16:32.42 On the reverse side where you have these townhouses here, these are what I call on the high side

1:16:37.30 of the property.

1:16:38.38 We're proposing these to have garage unders.

1:16:41.78 So in this case, you're building into the hill naturally, you have your driveway here

1:16:48.02 and you have a garage door and so your living floor is essentially the second floor of the

1:16:54.82 building.

1:16:55.82 But the benefit of that is that once you get up from your garage, you are now walking out

1:17:00.18 to your backyard and creating a flat area there.

1:17:02.62 So you're taking a sloped, steep area of a property and you're creating by working with

1:17:08.70 the topography, natural areas of flat development.

1:17:12.30 It also allows for a nice buffer of trees to remain along the roadway in this case.

1:17:18.74 No driveways onto Caliph, just one access drive here.

1:17:24.38 And being able to naturally work within the slopes, these are tucked in so any abutters

1:17:30.14 on this side, these are built right into the hill.

1:17:32.36 So you're getting a perceived drop in grade right there.

1:17:35.98 And these are walking out but you're maintaining a tree buffer.

1:17:39.74 So we feel that we have a unique proposal that works well for this particular property.

1:17:47.42 And that's why we're asking for relief to allow the townhouses.

1:17:50.74 Now there was a number of variances that Mike mentioned.

1:17:55.02 The real variance here is the use variance because if the use variance were to be appropriate,

1:18:01.90 the other variances that are being asked for are really just ancillary to what we're adding

1:18:09.62 there, meaning that, for example, the R1B district allows for 2.5 stories and 35 feet

1:18:19.62 height.

1:18:20.78 So by definition, the townhouses would not fit that exact criteria.

1:18:26.98 However, in the townhouse section of your zoning ordinance, townhouses are permitted

1:18:31.98 to be three-story, 40 feet.

1:18:34.42 So it would meet the intent of that criteria.

1:18:38.06 The other item I would add is just as a test, I think it's appropriate to have a test as

1:18:43.02 far as density because it said in the review that 78,000 square feet is required.

1:18:51.14 We only have 40-something thousand.

1:18:53.26 The rationale behind that is, again, applying the R1B district to this, you have 6,000 times

1:18:59.22 13, that gets you to the 78,000.

1:19:02.10 In reality, if this were looked at as the residential multifamily, which is probably

1:19:07.94 the least stringent requirement of multifamily that you have in your ordinance in a residential

1:19:12.46 setting such as this, RM requires 7,500 square feet for your first three units and then 3,000

1:19:20.50 square feet for every additional unit.

1:19:22.34 So based on the buildable area, subtracting those steep slopes we talked about and working

1:19:26.46 with just the buildable area that we have on this property, we are permitted to have

1:19:30.74 17 residential units of townhouses.

1:19:33.46 So the 13 that we're proposing is not an egregious ask or well beyond the scope of the zoning

1:19:39.70 ordinance because it really falls right into that category of the RM.

1:19:45.16 So for that reason, we feel it's reasonable, obviously I wrote up all the criteria specifically.

1:19:53.22 I'm happy to go through that or read that in if needed, but I can turn it back to the

1:19:56.54 board for any questions before we get to that stage.

1:19:59.78 Questions from members of the board?

1:20:03.78 Very quick.

1:20:06.14 And just confirming, so in the redesign, you folks no longer need relief from dumpster

1:20:10.22 location, townhouse parking drive, landscape or fence height?

1:20:12.94 Those were all items that you've removed.

1:20:15.10 That's correct.

1:20:16.10 To be honest with you, when this was brought forward, we were supposed to be on last month,

1:20:21.74 after Mike had done his thorough review and came back with some additional relief necessary,

1:20:27.26 we felt that we didn't want to needlessly ask for things that we thought we could fix.

1:20:31.22 So we did adjust all those items you just mentioned to conform so we won't be needing

1:20:35.74 those relief.

1:20:36.74 We wanted to get the number of asks down to really what we only feel we necessarily need.

1:20:42.38 And so for that reason, all those are eliminated.

1:20:45.22 And thank you for your work in preserving the buffers and your work to give the neighbors

1:20:48.62 the 25 feet, confirming the areas that face calif and the other side, those will be left

1:20:54.58 with the vegetation that's there undisturbed more or less.

1:20:57.82 Yes, that's the intent.

1:20:59.82 We did look at this in three dimensions.

1:21:01.82 So those townhouses, because of the walkout basement nature, will be able to meet natural

1:21:08.02 grade and not have to chase that grade all the way down the hill.

1:21:10.68 So we would go to maintain some natural wood line on the calif side and on the other side,

1:21:16.50 same situation.

1:21:17.50 Thank you.

1:21:18.50 Anyone else?

1:21:19.50 We'll go to public.

1:21:20.50 Anyone here to speak in favor of this application?

1:21:21.50 Anyone to speak in opposition to the application?

1:21:22.50 If we would go to the podium, please.

1:21:23.50 So we limit the testimony for members of the audience at three minutes.

1:21:24.50 And we're going to ask you to state your name and address.

1:21:25.50 And then when you're done, if you would let us know, we'll be able to answer your questions.

1:21:26.50 Thank you.

1:21:27.50 Thank you.

1:21:28.50 Anyone else?

1:21:29.50 We'll go to public.

1:21:30.50 Anyone here to speak in favor of this application?

1:21:31.50 Anyone to speak in opposition to the application?

1:21:32.50 If we would go to the podium, please.

1:21:33.50 So we limit the testimony for members of the audience at three minutes.

1:21:34.50 And we're going to ask you to state your name and address, and then when you're done, if

1:21:41.22 you would write your name and address on the tablet that's on the desk next to you.

1:21:47.22 Thank you.

1:21:49.38 Mr. Chairman, members of the board, my name is Nick Lavassar.

1:21:51.98 I'm a former state representative, Ward 4, and I live at Ward 9 on 30 Mystic Street.

1:21:57.58 I live in the house my grandfather built when he came back from World War II.

1:22:01.58 I am the third generation of my family to live in this neighborhood.

1:22:05.06 My son Atticus, five years old, is the fourth generation to live there.

1:22:10.06 I'm not here as a neighbor with a grievance.

1:22:12.18 I'm here because I've sat in rooms like this, and I've had issues where you look under the

1:22:18.14 hood and you find issues wanting.

1:22:20.34 Could you speak up closer to the mic, please?

1:22:22.62 Thank you.

1:22:23.62 Sorry.

1:22:24.62 I want to be clear about where I'm coming from because I know what a hearing like this

1:22:28.26 can sound like.

1:22:29.26 I'm in favor of housing in the city.

1:22:30.94 I have a five-year-old.

1:22:32.22 I want more kids on Mystic Street for them to play with.

1:22:35.38 That means more families and more homes.

1:22:37.74 The city agrees with me.

1:22:38.74 It went through a four-year process of writing the zoning ordinance to make room for exactly

1:22:43.30 that.

1:22:44.30 The ordinance took effect on March 1st of this year.

1:22:47.34 What I'm not in favor of is changing the character of a neighborhood by variance six months after

1:22:52.18 the city decided by a public process what this neighborhood should be.

1:22:57.54 As you know, the state law dictates a five-part standard for approval or denial of variances.

1:23:04.30 I want to talk about two areas where I feel this process or this application falls short.

1:23:11.74 First, the hardship argument.

1:23:14.02 The applicant's own site plan, when they submitted it, shows five conforming lots.

1:23:20.54 Fully conforming, no variance required.

1:23:22.90 That's their engineer's drawing.

1:23:25.66 When the applicant's own plans show five conforming lots, the hardship argument falls apart.

1:23:31.90 The board is not being asked to rescue an unusable lot.

1:23:35.46 It's being asked to approve a more profitable option over a compliant one.

1:23:40.34 The law asks whether there is something special about the land, not about the neighborhood

1:23:45.18 around it, and not what the project owner would prefer to build.

1:23:49.54 The applicant hasn't pointed to anything about the land, the shape of the lot, or the soils

1:23:53.90 or the frontage.

1:23:55.46 The only physical feature it mentions is the slope and the five lots that it shows built

1:24:01.82 on that slope.

1:24:07.56 The applicant bought the parcel in 2024, the single-family lot.

1:24:10.62 That's what it was zoned as then.

1:24:12.26 It's still zoned as that now.

1:24:13.34 The city chose to keep that this year.

1:24:17.74 I'd ask the board to sit with what it means to grant that when the applicant's own engineer

1:24:22.42 drew conforming lots in their own application.

1:24:28.78 Granting a variance despite that is just ... They would just be showing favor, and it's just

1:24:39.30 paid for by the people that built by the rules.

1:24:44.58 The second area where it falls short is the spirit of the ordinance.

1:24:47.86 The city's own zoning review plainly states the townhouses are not permitted as a building

1:24:51.38 type in this district.

1:24:53.38 Multifamily dwellings are ... 30 seconds.

1:24:55.38 What was that?

1:24:56.38 You have 30 seconds, please.

1:24:58.38 All right.

1:25:00.38 It's all right.

1:25:04.38 You're stable.

1:25:08.86 At the end of the day, the lot doesn't conform.

1:25:12.70 They have conforming options in their plan.

1:25:15.78 This is well outside of the scope.

1:25:17.30 It doesn't fit the spirit of the ordinance.

1:25:19.06 We're asking for six different variances well outside of what the intention of the barely

1:25:25.42 six month old ordinance is.

1:25:30.70 I submitted this by email if you can review it there.

1:25:33.30 Thank you.

1:25:34.30 Sure.

1:25:35.30 Write your name on the tablet, please.

1:25:40.98 I got you.

1:25:41.98 He's signing in.

1:25:42.98 Kate Markey, 479 Califf Road.

1:25:45.74 I'm a couple houses down north of this picture.

1:25:50.22 I'm here because this lot was just recently purchased in a land sale with all the issues

1:25:57.26 that it has.

1:25:59.86 This is no surprise that it has these issues.

1:26:03.14 I think that this is too much for this land.

1:26:06.38 Part of that is the development just south of this.

1:26:10.46 That has major parking issues.

1:26:12.10 If you live in this area, this has major parking issues.

1:26:15.62 On Califf Road, if you look at where that white truck is right there, that's about where

1:26:21.02 public parking is allowed on Califf Road.

1:26:23.18 Anything south of that, you'll notice if you drive there, there's big no parking signs.

1:26:29.18 It's because the development right south of that has overflow that is massive, especially
1:26:35.46 in the winter when you get around snow removal.
1:26:38.22 It tears up the whole side of the road there.
1:26:40.98 This is a lot of units of housing to add to that, where are their guests going to park?
1:26:47.74 Where is the second car going to park?
1:26:50.90 This is my major issue here.
1:26:53.54 This is on a hill, so it's really hard to park on Titus Ave.
1:26:56.78 It's fairly tight lane.
1:27:00.14 There's also a lot of water.
1:27:01.94 I live on Califf in between Mystic and Wilmot.
1:27:07.10 When I'm on a hill, my place is half in the ground, just like they're describing.
1:27:12.14 It's great.
1:27:13.14 It saves on heat in the winter.
1:27:16.14 The water just comes straight down that hill, and it floods Califf Road, if anybody knows
1:27:21.14 if it rains hard.
1:27:22.74 You come around that corner on Califf, watch out, because it floods.
1:27:27.18 This is going to ruin all of the natural ... I'm still not opposed to having housing there,
1:27:33.46 just not that much housing.
1:27:36.26 I'm not convinced that this is in the public interest, and that it meets all five criteria
1:27:44.98 to have the variances granted.
1:27:47.06 Thank you.
1:27:48.06 Thank you.
1:27:49.06 Ma'am, go ahead and approach.
1:27:50.06 Thank you.
1:27:51.06 Hi.
1:27:52.06 My name is
1:28:02.82 Tracy Sesanius.
1:28:07.50 I live at 47 Mystic Street.
1:28:11.06 My property abuts the Paper Street.
1:28:17.98 Our main concern is he's showing all the vegetation in the trees, but let's talk about what he's
1:28:28.86 taking off on the abutting side.
1:28:32.50 There's no plan that shows how far back he's going to go.
1:28:35.54 Is he going to go right up to that 25 feet and take all the trees there?
1:28:42.30 Because if you look at where his driveway or the parking lot is, it's pretty close to
1:28:51.86 our back lots.
1:28:54.66 One of the points that we're concerned with is, besides the vegetation buffer, is the
1:29:03.38 water.
1:29:04.38 I don't want to repeat what somebody else said, but the storm water flow, it is a big
1:29:09.30 issue.
1:29:12.22 Traffic and driveway safety, how is a fire truck going to get in there if you have all
1:29:18.98 the cars parked and all that?
1:29:21.94 And we have the fire department do an assessment of if that's going to be enough space for
1:29:32.78 a fire truck to go in in case there's an emergency and then throw snow on top of that, where
1:29:40.38 are they going to push all the snow?
1:29:43.06 It doesn't really look like there's anywhere to push the snow except for out onto Titus
1:29:49.74 or back into our backyards.
1:29:54.78 So we want the fire department to approve that the internal drive and the turning area
1:30:00.66 and the building access will be enough.
1:30:08.06 The dumpster here took care of that.

1:30:13.26 And people parking, they will park on Titus, which is not a place that they should be parking.

1:30:19.58 And Y13 units, initially I thought there was garages on all the units, but what he said

1:30:34.66 today there's only garages on the right-hand side, which is different from what I read

1:30:40.14 on the plan.

1:30:47.42 So we're not opposed to a project.

1:30:50.38 We don't feel that 13 townhouses is needed.

1:30:57.38 It's more for money, in our opinion, than he could do the five single families.

1:31:05.54 Thank you.

1:31:06.54 Thank you.

1:31:07.54 Thank you.

1:31:08.54 Thank you.

1:31:09.54 Good evening, Chairman and members of the board.

1:31:20.22 My name is Jennifer Allard.

1:31:21.34 I live at 31 Mystic Street.

1:31:24.82 I first want to say about them giving us property.

1:31:29.46 I actually got a lawyer and went to court and we won our half of the street.

1:31:35.14 They didn't give us a half of the street.

1:31:37.36 We won our half, they got the other half.

1:31:39.80 So they didn't give us anything.

1:31:41.50 And as far as their buffer, that's Caleb Road.

1:31:45.58 There are no houses for that to be buffering, so it's not really helping anyone.

1:31:50.54 All of our houses are the ones that are looking at a three-story building that's going to

1:31:56.10 morph all of ours.

1:31:57.30 And I have no -- like I said, they said the same thing.

1:32:00.62 We have no problem with houses, but this area does not allow for townhouses, for one.

1:32:06.58 And the buildings he brought up were built in 1978.

1:32:09.34 Those buildings with all those people in them, those were built in 1978.

1:32:13.50 So I'm sure the zoning was different then as well.

1:32:18.30 Basically they have 36% less area that they're asking for that they need.

1:32:25.06 Almost half of the -- let's see.

1:32:29.82 They need 78 square, 78,000 square, and they only have 49.

1:32:35.62 The buildings, two and a half stories, and they want three stories.

1:32:39.82 Like I said, that's going to morph all of ours.

1:32:41.98 I bring up the same concern as everyone else, the snow removal, emergencies, parking.

1:32:48.42 It's a very dangerous area already and very heavily trafficked.

1:32:51.98 No one can park on Caleb.

1:32:52.98 You're not allowed to park on Caleb.

1:32:55.10 So where is their overflow going to go?

1:32:57.02 How are they going to get the snow out of there?

1:32:58.50 How is emergency going to get in?

1:33:00.42 Lighting.

1:33:01.42 How is the lighting going to affect all of us?

1:33:05.82 Animals I sent in an email about the Canadian geese that actually used that corridor right

1:33:11.54 there to go to the cemetery because that's where they all congregate.

1:33:16.14 There's a fountain, there's water.

1:33:18.02 They bring the babies there.

1:33:20.94 So I'm concerned about that.

1:33:22.94 The animals that live there, the trees that are there, some of them are 100 years old.

1:33:26.98 Those will take forever to grow back if they tear them all out.

1:33:29.72 We have no plan about the light.

1:33:32.34 I don't know if they've checked like lighting, checked when they do the construction, how

1:33:38.02 all that's going to affect everything.

1:33:40.22 I just feel that houses like my other neighbor said are great.

1:33:45.18 They already set it up that they know they can build houses, but they want to maximize

1:33:49.82 how much money they can bring so they want a three-story where townhouses aren't permitted.

1:33:54.78 That's thank you.

1:33:58.70 >> Anyone else to speak in opposition?

1:34:01.94 Any general comments?

1:34:04.46 Mike any correspondences?

1:34:05.46 >> Yes, Mr. Chairman, we received a number of emails from the folks that already spoke.

1:34:15.22 And I will dig into them.

1:34:17.50 So Mr. Lebasseeur sent a detailed email, sent a couple and one was focusing on the five criteria.

1:34:26.50 Everything that we received before noon time today was forwarded to the board.

1:34:31.62 But our first email is from Candace Gibbons.

1:34:35.30 She writes on Candace Gibbons.

1:34:37.22 Gibbons is a former state Graping Board 9 in Manchester.

1:34:39.74 I'm writing with concern over proposed plans for the 13-unit apartment complex on Titus

1:34:44.86 Ave.

1:34:45.86 The neighborhood consists of single-family homes.

1:34:49.06 Multifamily residents is not permitted in that area per section 43A1C.

1:34:55.06 We don't know that it won't change the valuations of the homes in the area.

1:34:58.78 Only the applicant's engineer has attested that it won't.

1:35:02.22 Someone with a vested interest in getting the variance passed.

1:35:05.74 Safety is a concern.

1:35:06.74 There are only 20 parking spaces for 13 units.

1:35:09.78 Most families have two vehicles, if not more.

1:35:12.70 At one point, my family had four vehicles.

1:35:15.26 Inevitably, people will have to utilize street parking.

1:35:19.14 That is going to cause issues, especially in the winter when street parking is banned.

1:35:24.34 There's been no traffic, parking, or light study to ensure the safety of the intersection.

1:35:28.78 In short, this variance should not be approved.

1:35:31.82 Candace Gibbons.

1:35:32.82 I'm sorry?

1:35:33.82 Okay.

1:35:34.82 Would you like me to continue?

1:35:45.06 You've already read them.

1:35:48.06 Okay.

1:35:52.46 I am writing on behalf of my mother, Helen B. Horn of 55 Mystic Street.

1:35:56.42 My mother is 92 and cannot see well.

1:35:59.02 Her next door neighbors were either emailing you or mailing a letter about this case.

1:36:04.66 They asked me to file something too.

1:36:06.14 I remember back in 1972, my mother and her neighbors buying land behind their houses

1:36:11.66 so no one could build behind them.

1:36:13.42 My mother wants to continue to stay that way.

1:36:16.50 There was already a lot of traffic in that vicinity, and they really don't want more.

1:36:20.66 So cutting all the trees would make for no privacy.

1:36:24.10 So my mother does not want any condos built.

1:36:26.62 I know the judge already denied his filing, so I don't understand how it got placed in

1:36:31.10 your department.

1:36:32.34 I thought if you appeal it, it would go back to court.

1:36:35.94 This gentleman won't have enough land to build those condos, and I am almost certain that

1:36:39.68 no one is going to give in to the latest filing.

1:36:42.54 Thank you.

1:36:43.54 Debbie Bill's daughter on behalf of Helen Horn.

1:36:49.92 We heard from Ms. Allard.

1:36:52.10 She sent in a detailed email that was sent to the board.

1:37:03.12 We also heard from Ms. Sesinas.

1:37:07.50 And again, another detailed email.

1:37:15.22 We have another email from Cassandra Cody.

1:37:18.38 She writes, I currently live at 21 Mystic Street.

1:37:21.14 Me and my husband Jeffrey Cody recently became informed of the new development trying to

1:37:26.66 conspire behind our property.

1:37:29.22 We have lived here for 22 years.

1:37:30.94 We bought a house with the promise that there was a paper road in the woods to make it so

1:37:35.06 that there was a non-development area.

1:37:38.38 Now that it's been sold and there is going to be some sort of structure there, I hope

1:37:43.74 you are able to protect our neighborhood from an overabundance of residents in a small area.

1:37:48.82 This will cause unnecessary noise and traffic on our streets and our backyard.

1:37:54.02 It seems like he bought that land with the intention to change a lot of the necessary

1:37:58.54 laws that we have kept in our original neighborhood and unaltered.

1:38:03.02 I know that the hearing is tomorrow.

1:38:04.42 Could you please make sure the company doesn't take over the neighborhood?

1:38:07.86 Thank you, Cassandra Cody.

1:38:10.74 Excuse me.

1:38:14.78 We have an old letter from Alderman James Burkish.

1:38:19.30 Award nine.

1:38:20.90 Dear members of the board, I have met with the neighbors abutting the property and have

1:38:25.66 also received emails.

1:38:27.14 Most are understanding the property will be developed.

1:38:30.18 The concerns expressed, I believe, can be addressed by the developer by meeting with

1:38:34.38 the residents directly.

1:38:35.38 I am asking that this variance be tabled for another month to allow the abutters to have

1:38:40.38 their questions and concerns answered.

1:38:47.30 The next is from Allison, famous in La Vassa.

1:38:51.74 She writes, I live at 30 Mystic Street in the neighborhood surrounding 26 Titus Ave.

1:38:57.94 I'm a family that lived there for nine years.

1:39:00.82 I am writing an opposition scheduled for hearing on -- I am writing an opposition for a variance

1:39:08.86 application for 26 Titus Ave. scheduled for a public hearing on September 10th.

1:39:13.50 I want to say plainly that I am not opposed to new housing in Manchester.

1:39:17.26 The city needs it and new zoning ordinance was written to encourage it.

1:39:20.86 My injection is narrower.

1:39:23.06 The ordinance already decided where housing of this type belongs and a variance is not

1:39:28.50 the way to relocate it into a single family neighborhood.

1:39:31.94 State law allows the board to grant a variance only if the applicant proves all five criteria.

1:39:37.06 If anyone fails, the board must deny the criteria that concerns me most is a spirit of the ordinance.

1:39:43.54 The city's zoning review found that neither the multifamily use nor the townhouse building

1:39:47.90 type is allowed in the district.

1:39:50.18 The applicant is asking for relief from six separate provisions in one application.

1:39:55.34 What can be built here?

1:39:56.54 What form it may take?

1:39:57.62 How much land it requires?

1:39:58.98 How tall it is in stories and feet and where the parking may go?

1:40:03.26 The lot is 49,484 square feet of buildable land against the 78,000 required for 13 units.

1:40:12.54 Even the most generous density formula in the ordinance would allow eight.

1:40:16.26 When an applicant needs the board to set aside the district's base rules on use form and

1:40:22.74 size and height all at once, the request is no longer a variance from the ordinance.

1:40:27.18 It is a substitute for it.

1:40:30.42 I would ask the board to consider unnecessary hardship.

1:40:33.22 The hardship test asked whether something about this particular piece of land makes

1:40:37.02 it so unreasonable to use it the way the ordinance already allows.

1:40:41.00 Nothing in the application says so.

1:40:42.98 The applicant's own materials include a subdivision drawing that shows that it fits five house

1:40:48.22 lots on this parcel.

1:40:49.54 Each meeting the current zoning and the applicant's memo concedes the lot can be developed that

1:40:54.58 way.

1:40:56.74 What the application describes instead is a preference for larger and more lucrative

1:41:00.90 project and New Hampshire courts have held for decades that wanting a better return is

1:41:06.10 not a hardship.

1:41:07.66 She quotes Olsak versus town of New Hampshire with the court's case citation.

1:41:14.14 The applicant purchased this property from the city in 2024 knowing it was zoned for

1:41:18.70 single family homes.

1:41:20.26 A conforming use is available today.

1:41:22.10 They should end the inquiry or that should end the inquiry.

1:41:26.22 I am unable to attend the hearing in person and ask that this letter be entered into the

1:41:29.90 record and be considered for the board.

1:41:32.62 Respectfully I ask that the board deny the application.

1:41:40.06 We have another email.

1:41:41.86 My name is Devin Mercer DeFilippe.

1:41:44.50 I live at 884 Marrow Street in Manchester.

1:41:47.66 I'm writing in opposition to the variance at 26 Taitous Ave.

1:41:51.58 I want to say plainly that I am not opposed to new housing.

1:41:54.22 The city needs it and the new housing ordinance was written to encourage it.

1:41:58.94 My objection is narrower.

1:42:02.26 This seems to be very similar to what we just read.

1:42:07.46 Again citing the Olsak case.

1:42:11.34 This goes on to say consider the spirit of the ordinance.

1:42:14.66 This request by the builder are entirely entitled and the desire to profit as much as possible

1:42:22.26 these variants would not improve the lives for either tenant or the existing community

1:42:27.70 in a developer's wallet is not something I consider important.

1:42:31.34 I'm unable to attend.

1:42:33.62 Please read this letter into the record and for these reasons I respectfully ask the board

1:42:41.66 to deny the application.

1:42:44.42 Sincerely Devin Mercer DeFilippe.

1:42:48.58 Another email from Mr. Levasseur.

1:42:59.10 We have another email from my name is Kayla Von Hughes and I live at 373 Bridge Street

1:43:07.22 in the neighborhood surrounding 26 Taitous Avenue.

1:43:11.42 I am writing in opposition for the variance application scheduled for a public hearing
1:43:16.02 on September 10th.
1:43:17.02 I want to say plainly that I'm not opposed to new housing in Manchester.
1:43:21.18 Manchester needs it.
1:43:22.18 State law allows the board to grant a variance only of all five criteria.
1:43:26.86 If anyone fails the board must deny.
1:43:31.98 The criteria that concerns me most is unnecessary hardship and really it is very similar to
1:43:38.70 what they just said.
1:43:42.66 The applicant's own material includes a drawing that shows five loss that fit on the parcel,
1:43:47.26 each meets the current zoning and the applicant's memo concedes it can be developed this way.
1:43:53.34 That should end the inquiry.
1:43:54.62 I am unable to attend and ask that this be read into the record and deny and we have
1:44:03.78 a second email from Candace Gibbons that I already read her email.
1:44:09.62 So, Mr. Chairman, that is all I have.
1:44:11.70 Thank you.
1:44:12.70 The public would you like to address some of the comments?
1:44:17.70 Yes, sir.
1:44:18.70 Thank you.
1:44:19.70 So, a lot of good questions I heard.
1:44:25.10 A lot of those items would be planning board related items in my opinion.
1:44:30.94 Obviously and the public may not be aware of this but if this board were to be inclined
1:44:34.54 to grant us the relief we would then have to do a full residential site plan and go
1:44:39.46 through the planning board process.
1:44:41.02 So, a lot of the items talking about parking spaces or fire truck turnaround items, a lot
1:44:49.18 of that would be planning board items that would be valid items that will be discussed
1:44:53.70 and would have to be addressed at that board level.
1:44:56.42 I will say that we do feel we have adequate parking here.
1:44:59.46 We are showing 30 parking spaces and so that is at least two per every unit in the development
1:45:06.70 plus at least four additional for visitors.
1:45:09.62 So, we were trying to put our best foot forward with that but knowing it would come up potentially
1:45:14.58 at the planning board level.
1:45:16.34 A fire truck turnaround was designed that was not by accident how we had that layout
1:45:21.22 so that a fire truck could utilize the parking area to turnaround also for a trash truck
1:45:25.14 or things of that nature.
1:45:26.46 So, we did think about those things even though those are planning board type items.
1:45:32.06 The big thing is as I heard many times over that this property does not have a hardship
1:45:37.50 and I may have elaborated more and they were not aware of some of that testimony until
1:45:42.54 I provided it to you as part of this application but there really is hardship here.
1:45:49.78 As I talked about we do have special conditions on this property where we have an irregular
1:45:54.78 shaped lot, we have steep slopes that would require us to have to build into the hill
1:46:04.06 for those residences, the driveway, curb cuts would all be off, calif and that has its own
1:46:11.74 difficulties.
1:46:12.74 One of the abutters actually brought up another issue that it does have merit is water and
1:46:18.06 so you cut into the side of a hill, you have a high hill, the backyards it's a drainage
1:46:23.30 issue and so it makes the buildability of single family homes on this property more
1:46:29.38 and more difficult.
1:46:30.74 So, to the opposite of that when you do something as we're proposing a lot of those issues go
1:46:37.54 away.
1:46:38.54 A residential site plan requires us to do pre and post drainage analysis, we'll have to

1:46:44.34 have drainage design, some place to put the water, some place to put the snow, all of
1:46:49.30 that will be factored in on the plans.
1:46:51.98 So, in many ways a lot of the concerns that the abutter is raised will be taken care of
1:46:59.86 by doing a residential site plan versus having independent single family homes because single
1:47:05.02 family homes, the oversight is essentially less.
1:47:08.66 I mean somebody wants to try to cut the back of their property all the way to the edge
1:47:12.32 or if they want to cut every tree on their property they have a legal right to do that
1:47:16.50 and so where this would be managed, a managed property with landscaping and things that
1:47:23.18 would have to be up kept it wouldn't be the same as single families.
1:47:27.02 But we certainly do have a hardship in the special conditions of the property that relate
1:47:33.50 to that.
1:47:35.38 Looking through my notes just to see if there was anything else that popped up.
1:47:41.06 I'm not seeing anything more but did you have something?
1:47:45.58 Yeah, so again for the record if nobody heard me my name is Todd Boyer.
1:47:50.42 A couple of the things that were brought up was spirit of the ordinance.
1:47:55.50 We're not looking to do a commercial development within a residential neighborhood so we are
1:48:01.26 in the spirit of the ordinance by having residential within the residential zone.
1:48:06.86 Yes, it is a different use but that is why we are here.
1:48:11.86 So the spirit of the ordinance is being observed by having it stay residential.
1:48:17.58 As Mr. McGuire stated the hardship is the steep slopes.
1:48:23.78 We can't essentially build the houses.
1:48:27.34 We were showing what it was but you can't build them.
1:48:31.08 This you can build.
1:48:33.72 It was brought up several times that I bought the property in 24 from the city of Manchester.
1:48:38.02 Yes, I did.
1:48:39.02 I bought it at the auction that the city of Manchester held and the mayor was on record
1:48:44.68 stating that the use of the excess property that the city owned was to try to help out
1:48:52.90 their issue.
1:48:54.84 That is what we are trying to do.
1:48:57.50 The residential issue.
1:49:01.30 In regards to the water as Mr. McGuire said if there's an issue with water right now and
1:49:10.86 we're allowed to build the development all of those water issues go away because now
1:49:17.34 it is controlled water.
1:49:20.42 The other issue about parking on Caliph.
1:49:23.38 If there's parking on Caliph right now and it's not being enforced do we really want
1:49:28.66 to have five curb cuts along Caliph or four curb cuts along Caliph with driveways and
1:49:35.92 other people parking there because another development needs overflow.
1:49:40.66 I don't think that that is a safe issue.
1:49:44.18 At least here we're showing plenty of parking for all of the residents and some additional
1:49:50.50 guests.
1:49:52.34 With those extra little points I'll stop and come back to you guys.
1:49:57.86 Thank you.
1:49:58.86 We'll go back to the board.
1:50:00.86 Members of the board, anyone have any comments?
1:50:03.46 Matt?
1:50:04.46 I have a question.
1:50:06.46 Go ahead.
1:50:08.50 It seems to me you have a quality development and you've put a lot of thought into it.
1:50:14.26 Perhaps you can help me get there.

1:50:18.70 I'm having a tough time seeing how an actual hardship exists that would override the prime
1:50:30.22 instruction which is that this is not an area that's zoned for townhouses.
1:50:38.46 In essence it's striking me as the argument is it would be good if it were zoned for townhouses
1:50:46.82 and there might be a really good argument for that given the developments that are by
1:50:50.98 in the Mount Zion school that's there and so on.
1:50:54.46 But that's not what it's zoned for.
1:50:59.42 So give me some help on that one.
1:51:03.78 The other one is just a more quick question.
1:51:08.66 You have to carry all five criteria and the fourth one is whether or not it would negatively
1:51:14.86 affect property values in the area.
1:51:17.78 Did you obtain a broker price opinion to support that?
1:51:22.54 So no, we did not.
1:51:25.54 I think if the board felt that that was needed then we certainly could do that.
1:51:31.06 Our thought was in this case as you know you have to look at every variance specific to
1:51:38.42 the property and its surroundings.
1:51:40.10 So in this case and that's why we put some effort into not only into the design on site
1:51:46.94 but also in explaining what's going on outside the boundaries of our property.
1:51:53.58 I guess I would ask you as a board if you were looking for that what piece did you because
1:52:01.74 again we heard from a lot of abutters that lived on Mystic right.
1:52:07.22 You have 130 feet of wooded buffer between this property.
1:52:13.24 So they're not really going to see this property either way.
1:52:17.30 We have a dense I mean they can see each other they're like right on top of each other where
1:52:21.78 they're built but then there's a hundred you know 135 feet of additional woods.
1:52:28.86 So to me I wouldn't think that a use that I don't think that would factor into their
1:52:36.16 property value at that at that distance and that level of buffer.
1:52:39.62 Of course some of the other pieces more close are more intensive uses than even what we're
1:52:45.74 proposing.
1:52:46.74 So that's my position I guess on that but if the board felt that that was something necessary
1:52:50.26 we we could obviously look to get that.
1:52:53.70 Regarding the hardship piece I look at it as as you're aware that you have specific
1:52:59.34 circumstances of the property where the property cannot be reasonably used in strict conformance
1:53:04.30 with the ordinance and where we look at this is you have a property that for many of the
1:53:12.70 items the the circumstances the conditions of this property the slopes water driveways
1:53:20.78 on calif that create a hardship to reasonably develop this I mean it's it's a large piece
1:53:26.90 of land even the even the physical I guess call it conceptual that we looked at where
1:53:35.34 we showed okay this is what we could do these are all some of these lots are oversized and
1:53:42.66 this one significantly oversized you know so the the thought is is that if you looked
1:53:48.02 at just the square footages this lot would support more than than what we're showing
1:53:56.66 here just physically based on buildable area divided by 6000 what do you have for house
1:54:02.46 lots you have more than that we were trying to be more realistic as to how it would potentially
1:54:06.58 be built but even with a reduced build because as I said we got more square footage than
1:54:13.42 we need here but at a reduced build you still have difficulties in developing this and so
1:54:19.86 to me that is not reasonable it's not a reasonable use if you could have nine single family homes
1:54:29.10 here by right and you can't get more than one or two is that a reasonable use of the
1:54:34.74 property I would argue that it isn't where you could utilize a another form of residential
1:54:44.34 and we wouldn't be proposing this by the way if there wasn't other circumstances surrounding
1:54:49.30 the property which I feel also has to weigh in to that hardship argument I think you know
1:54:54.30 the previous case it was all single families they were trying to put a three family that's
1:54:57.54 not really the case here we have significant multifamily density directly across the street

1:55:03.14 96 units I understand it was built in the late 70s early 80s but it's it's a part of
1:55:09.10 the community it's a part of that neighborhood this accesses directly to Calif which turns
1:55:13.54 immediately into brown have and gets you right to the highway so it's a good location for
1:55:18.20 a potential higher density and with these existing properties you got a school here
1:55:24.06 you got a two house situation right next to us on a quarter acre you got a cemetery across
1:55:29.06 the street it seems like a reasonable use of the property which is also the other prong
1:55:33.06 of the hardship so hopefully that helps anyone else and I suppose not questions for the applicant
1:55:43.26 but some things that come to my mind when I look at this one of the perennial things
1:55:46.94 that we see in almost all of these cases is the trees and the cutting down and as the
1:55:52.10 applicant heads beat me to when folks are doing a single family they can cut all those
1:55:57.46 trees down so I think some of the primary concerns that we hear over and over are addressed
1:56:02.02 by the enforced buffer in a plan development such as this I do think this property has
1:56:07.42 some very unique characteristics 18% of it has slope that's undevelopable by ordinance
1:56:13.36 and by removing curb cuts into Calif I think we improve safety tremendously so when I weigh
1:56:20.34 these I look at if they're allowed to do or say they did do those five houses is that
1:56:25.74 more in benefit of safety is it more in benefit of the neighbors of the spirit people talked
1:56:31.06 about the density I think this area is a transitional area in that neighborhood so we recognize
1:56:36.86 that mx1 r1 any of the densities they're not solely that there are pieces that are exceptions
1:56:43.06 there are pieces that come to us for it we see a large multi dwelling unit here we do
1:56:47.94 see the property with double lots we see the school an entire side of it is cemetery this
1:56:52.98 is a transitional area where the added buffers proposed here do create a reasonable buffer
1:56:58.98 of landscape to the other properties where there is a transition in addition to I don't
1:57:04.50 think we've ever seen in my years on zoning another instance of properties that organically
1:57:10.30 have such a large buffer due to the situation with the paper street and the effectively
1:57:15.42 double lots so my overall thought on this is that I do believe this is the best plan
1:57:20.82 for this law it is singularly unique in its size at 1.1 acre and I think the buffers create
1:57:27.30 a lot of alleviation to the problems we have a lot of the other problems are addressed
1:57:30.86 in the plan review process anyone else thank you to get into some findings effects for
1:57:42.22 Michael's purpose I'll reiterate some of those it's a tremendously unique lot at 1.1 acres
1:57:48.78 and a lot of slopes including 18% that is undevelopable based on the city's calculation
1:57:55.38 of the slope review the quieting of title on the paper street creates additional buffers
1:58:02.26 to the properties on the north whether through the applicant or the other neighbors efforts
1:58:07.02 there are additional buffers then beyond what the plan development requires in itself in
1:58:13.98 allowing this as a plan development it reduces the need for curb cuts on Califf Road and
1:58:18.50 preserves existing on street parking in addition to moving the entrance to one location that's
1:58:25.26 off of Titus Avenue which is in general safer to turn on to than the busier Caleb Mr. Chairman
1:58:33.14 make Craig could you please repeat that you're going really fast going right at the last
1:58:38.58 minute I got you later and as I noted earlier this is a transitional area where there are
1:58:52.10 several other mixed or high density uses including the large development of the south the cemetery
1:58:59.90 and the Zion school also I am a real estate broker and I'm not aware of any circumstance
1:59:06.66 where development of this nature in Manchester has diminished a property around it I've never
1:59:10.86 seen a reporter evidence of that in general reasonably well thought out development increases
1:59:17.34 values I think a tremendous amount of thought has been put into this further evidence by
1:59:21.94 the applicant taking an additional month to rework and reduce counts so based on those
1:59:27.90 facts this variance is not contrary to the public interest in the spirit of this ordinance
1:59:31.54 is observed no one's going to benefit more from a denial than the applicant will from
1:59:35.50 the approval I don't believe the value of any surrounding properties will be diminished
1:59:39.86 and I do believe literal enforcement creates an unnecessary hardship for the applicant
1:59:44.18 so relative to ZBA 2026 - 063 emotion we grant relief from 43 a1c 812 531 e 531 e 5b 531

1:59:57.74 e 5c and 872 f2 noting that we've removed the three counts at the applicants corrected

2:00:06.10 the second second by Catherine all those in favor opposed motion passes for to one thank

2:00:13.98 you for your time